

SENATE No. 484

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to reserving beds in nursing homes during certain leaves of absence.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 484

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 484) of Mark C. Montigny for legislation relative to reserving beds in nursing homes during certain leaves of absence. Elder Affairs.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 393 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to reserving beds in nursing homes during certain leaves of absence.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 14A of chapter 118E of the General Laws, as appearing in the 2020 Official
2 Edition, is hereby amended by adding the following two paragraphs:-

3 In the event that a nursing facility resident who is a MassHealth recipient enters a
4 hospital, the division shall pay to preserve his or her bed in the nursing facility for a period of up
5 to and including 20 days per medical event. The division shall reimburse the nursing facility for
6 the medical leave of absence, which shall include an observation stay in a hospital in excess of
7 24 hours.

8 In the event a MassHealth member is residing in a nursing facility and requests a
9 nonmedical leave of absence, the division shall pay to preserve his or her bed in the facility for a

- 10 period of up to and including 10 calendar days per year. The division shall reimburse the nursing
- 11 facility for the nonmedical leave of absence.